

STATE OF NEW YORK

8491--A

Cal. No. 400

2025-2026 Regular Sessions

IN SENATE

August 25, 2025

Introduced by Sen. HINCHEY -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Energy and Telecommunications in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public service law, in relation to denials of increased utility rates and charges

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (j) of subdivision 12 of section 66 of the public
2 service law, as amended by chapter 154 of the laws of 1989, is amended
3 to read as follows:

4 (j) The schedule, rates, charges, form of contract or agreement, rule,
5 regulation, service, general privilege or facility in force when the new
6 schedule, rate, charge, form of contract, rule, regulation, service,
7 general privilege or facility was filed shall continue in force during
8 the period of the suspension unless the commission shall establish a
9 temporary rate or charge as authorized by section seventy-two of this
10 article. Provided, however, that whenever the commission shall deny a
11 request by a utility for a major change in rates or charges, the sched-
12 ule, rate, charge, form of contract or agreement, rule, regulation,
13 general privilege, facility, or service immediately in effect prior to
14 such request being filed shall remain in full force and effect until
15 such time as the commission approves a new schedule of rates or charges,
16 unless the commission established a temporary rate or charge as author-
17 ized by section seventy-two of this article.

18 § 2. This act shall take effect immediately and shall apply to all
19 requests by a utility for a major change in rates or charges filed after
20 such date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD05472-03-6